

YC072046 YC072046

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: YC072046 Hearing Date: July 14, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday, July 14, 2026

Calendar No.

PROCEEDINGS

Destination Shuttle Services, LLC v. Hooman Nissani, et al.

YC072046

1.

Destination

Shuttle Services, LLC's Motion to Enforce Settlement Agreement

TENTATIVE RULING

Destination Shuttle Services, LLC's Motion
to Enforce Settlement Agreement is granted.

Background

Plaintiff

filed the Complaint on May 11, 2017. Plaintiff alleges the following facts. Plaintiff operates a shuttle service between LAX and hotels. Wanting to re-locate closer to LAX, Plaintiff contacted Commercial Property Group, Inc. which agreed to be the broker representing Plaintiff, as well as the broker representing the current tenant on the property – HK Automotive. During negotiations with Hooman Nissani, the owner of HK Automotive, Nissani assured Plaintiff that he had authority to enter into a sublease with Plaintiff. The truth was that Nissani did not have authority to enter into the sublease. Plaintiff alleges the following causes of action: 1. Intentional Misrepresentation; 2. Negligent Misrepresentation; 3. Concealment; 4. Breach of Contract; 5. Breach of Fiduciary Duty; 6. Negligence. The parties entered into a settlement agreement on February 15, 2023.

Motion to Enforce Settlement
Agreement

CCP

§ 664.6 states:

“(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(b)

For purposes of this section, a writing is signed by a party if it is signed by any of the following:

(1)

The party.

(2)

An attorney who represents the party.

(3)

If an insurer is defending and indemnifying a party to the action, an agent who

is authorized in writing by the insurer to sign on the party's behalf. This paragraph does not apply if the party whom the insurer is defending would be liable under the terms of the settlement for any amount above the policy limits.

(c)

Paragraphs (2) and (3) of subdivision (b) do not apply in a civil harassment action, an action brought pursuant to the Family Code, an action brought pursuant to the Probate Code, or a matter that is being adjudicated in a juvenile court or a dependency court.

(d)

In addition to any available civil remedies, an attorney who signs a writing on behalf of a party pursuant to subdivision (b) without the party's express authorization shall, absent good cause, be subject to professional discipline.

(e)(1)

If a plaintiff, cross-complainant, or other party seeking affirmative relief has filed a notice of conditional settlement, the court may, upon its own motion, without stipulation from the parties or their counsel, set an order to show cause as to why the court should not dismiss the entire action without prejudice and retain jurisdiction to enforce the settlement.

(2)

This subdivision does not apply to actions brought pursuant to Chapter 5 of Title 3 of Part 2 of the Code of Civil Procedure (commencing with Section 378) and Part 13 of Division 2 of the Labor Code (commencing with Section 2698).

(f)

If the Court enters judgment or dismisses the case without prejudice pursuant to this section, the following shall apply:

(1)

A party may file a motion or other document pertaining to the settlement, including an application for determination of good faith settlement, a motion for the reduction or determination of a lien, a petition related to the compromise of the claim of a minor or person with a disability, or, if the terms of a settlement are not performed, a motion based upon such terms. Responsive filings and related documents may also be filed.

(2)

The court shall exercise its retained jurisdiction if a party files a notice that a written settlement agreement required of all parties was not signed by all parties.

(3)

A party who has paid a first appearance fee shall not be assessed a first appearance fee again for filing a motion, notice or other document pertaining to the settlement after entry of judgment or dismissal without prejudice.

(4)

The clerk of the court shall accept any motion, notice, or other document properly filed by a party after entry of judgment or dismissal without prejudice.

(g) Nothing in this section

shall preclude a party from filing a request for dismissal with prejudice after the court has dismissed the case without prejudice pursuant to this section.

(h)

On or before January 1, 2025, the Judicial Council shall update or develop new forms or Rules of Court as necessary to implement this section.

(i)

This section shall become operative on January 1, 2025."

Plaintiff

"move[s] for an order that the Court enforce the Parties agreement by ordering:

(1) Judgment against Hooman Nissani and H K Automotive, Inc. for 116,200 (sic), the outstanding balance of the Settlement Amount plus accrued interest at \$31.83 per day, plus \$15,627.50 in attorneys fess. (sic) This motion is made pursuant to the California Code of Civil Procedure § 664.6, on the grounds that the parties reached a valid and binding settlement on February 15, 2023." (Notice of Motion, p. 2, lines 5-11).

Plaintiff

states that "the settlements terms [...] required Defendants to pay Plaintiff a total settlement amount of \$350,000 in installments with an initial payment of \$9,700 and 41 monthly payments of \$8,300 beginning in March, 2023." (Motion, p. 3, lines 19-21). Plaintiff states that Defendants made payments through May

2025 but failed to make the June 2025 payment. (Decl., Brian Clark, 3-4).

Defendants

filed a written opposition and provided documentation indicating payments made after June 1, 2025: "(1) check no. 2268 dated July 1, 2025; (2) check no. 4003 dated September 1, 2025; (3) check no. 4008 dated October 1, 2025; and (4) check no. 4009 dated November 1, 2025." (Opposition, p. 2, lines 4-6). Thus, Defendants attempted to submit facts to controvert Plaintiff's contention that judgment must be entered based on Defendants failure to make payments after May 2025.

However,

Plaintiff filed a Reply arguing that payments were not in fact made. Plaintiff states that it never actually received the payments that were purportedly made. Plaintiff states that Defendants provided no evidence that the checks of July, October, or November 2025 were ever delivered. Plaintiff states that it did receive the September 2025 check but that there was a stop payment on that check. Thus, based on the arguments made in the motion, opposition, and reply, the Court continued the motion.

Defendants were ordered to

file a supplemental opposition which included competent admissible evidence indicating that each of the checks at issue here were sent to Plaintiff, cashed by Plaintiff, and that the funds were removed from Defendants' checking account. As of this date, Defendants filed no supplemental opposition. Thus, Defendants provided no evidence to controvert Plaintiff's contention that, despite the attachment of copies of checks to the opposition, no actual payments were made by Defendants nor drawn from Defendants' bank account. The Court also informed Plaintiff that, in the supplemental reply, Plaintiff was to specifically identify a term in the agreement that addresses any potential penalties that would be imposed upon Defendants for any late payments. Plaintiff submitted facts indicating that Sections C2, C3, and D15 provide for a notice and cure period followed by acceleration of amount due, interest, and attorneys' fees.

Thus, the motion to enforce

settlement is granted. Judgment is entered in favor of Plaintiff and against Defendant in the amount of \$116,200, plus interest accruing at \$31.83 per day until paid, plus attorneys' fees and costs in the amount of \$15,627.50.

Plaintiff is ordered to give notice of this ruling.